

SUM-130

SUMMONS—EVICTION
(CITACIÓN JUDICIAL—DESALOJO)

UNLAWFUL DETAINER / FORCIBLE DETAINER / FORCIBLE ENTRY
(RETENCIÓN ILÍCITA DE UN INMUEBLE / RETENCIÓN FORZOSA / ENTRADA FORZOSA)

NOTICE TO DEFENDANT:
(AVISO AL DEMANDADO):

ALEXANDER MILLER

YOU ARE BEING SUED BY PLAINTIFF:
(LO ESTÁ DEMANDANDO EL DEMANDANTE):

PHILLIP HERNANDEZ

FOR COURT USE ONLY
(SOLO PARA USO DE LA CORTE)

ELECTRONICALLY FILED
SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN BERNARDINO

9/3/2026 11:33 AM

By: Jacqueline Ramirez, DEPUTY

NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 10 days. You have 10 DAYS, not counting Saturdays and Sundays and other judicial holidays, after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff.

If this summons was served through the Secretary of State's Safe at Home address confidentiality program, you have 15 days from the date of service, not counting Saturdays and Sundays and other judicial holidays, to respond.

A letter or phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the Self-Help Guide to the California Courts (selfhelp.courts.ca.gov), your county law library, or the courthouse nearest you. If you do not file your response on time, you may lose the case by default, and your wages, money, and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a nonprofit legal services program. You can locate these nonprofit groups at the California Legal Services website (www.lawhelpca.org), the Self-Help Guide to the California Courts (selfhelp.courts.ca.gov), or by contacting your local court or county bar association.

FEE WAIVER: If you cannot pay the filing fee, ask the clerk for a fee waiver form. **NOTE:** The court has a statutory lien for waived fees and costs on any settlement or arbitration award of \$10,000 or more in a civil case. The court's lien must be paid before the court will dismiss the case.

¡AVISO! Usted ha sido demandado. Si no responde dentro de 10 días, el tribunal puede emitir un fallo en su contra sin una audiencia. Una vez que le entreguen esta citación y papeles legales, solo tiene 10 DÍAS, sin contar sábado y domingo y otros días feriados del tribunal, para presentar una respuesta por escrito en este tribunal y hacer que se entregue una copia al demandante.

Si la presente citación le ha sido entregado a través del programa de dirección confidencial del Secretario del Estado Seguro en Casa, tiene 15 días después de la fecha de entrega, sin contar sábado y domingo y otros días feriados del tribunal, para responder.

Una carta o una llamada telefónica no lo protege. Su respuesta por escrito tiene que estar en formato legal correcto si desea que procesen su caso en la corte. Es posible que haya un formulario que usted pueda usar para su respuesta. Puede encontrar estos formularios de la corte y más información en la Guía de Ayuda de las Cortes de California (selfhelp.courts.ca.gov/es), en la biblioteca de leyes de su condado o en la corte que le quede más cerca. Si no presenta su respuesta a tiempo, puede perder el caso por falta de comparecencia y se le podrá quitar su sueldo, dinero y bienes sin más advertencia.

Hay otros requisitos legales. Es recomendable que llame a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a un servicio de remisión a abogados. Si no puede pagar a un abogado, es posible que cumpla con los requisitos para obtener servicios legales gratuitos de un programa de servicios legales sin fines de lucro. Puede encontrar estos grupos sin fines de lucro en el sitio web de California Legal Services, (www.lawhelpca.org/es), en la Guía de Ayuda de las Cortes de California (selfhelp.courts.ca.gov/es), o poniéndose en contacto con la corte o el colegio de abogados local.

EXECCIÓN DE CUOTAS: Si no puede pagar la cuota de presentación, pida al secretario de la corte que le dé un formulario de exención de pago de cuotas. **AVISO:** Por ley, la corte tiene derecho a reclamar las cuotas y los costos exentos con un gravamen sobre cualquier monto de \$10,000 ó más recibido mediante un acuerdo o una concesión de arbitraje en un caso de derecho civil. Tiene que pagar el gravamen de la corte antes de que la corte pueda desestimar el caso.

1. The name and address of the court is:
(El nombre y dirección de la corte es):

FONTANA DISTRICT, COUNTY OF SAN BERNARDINO
17780 ARROW BLVD., FONTANA, CA 92335

2. The name, address, and telephone number of plaintiff's attorney, or plaintiff without an attorney, is: (El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):

PHILLIP HERNANDEZ, 2185 STEWART STREET, COLTON, CA 92324, (909) 362-7012

CASE NUMBER (número de caso):

LLTVA2604011



PLAINTIFF (Name): PHILLIP HERNANDEZ	CASE NUMBER LLTVA2604011
DEFENDANT (Name): ALEXANDER MILLER	

3. (Must be answered in all cases) An unlawful detainer assistant (Bus. & Prof. Code, §§ 6400–6415) ☒ did not ☐ did for compensation give advice or assistance with this form. (If plaintiff has received any help or advice for pay from an unlawful detainer assistant, complete item 4 below.)

4. Unlawful detainer assistant (complete if plaintiff has received any help or advice for pay from an unlawful detainer assistant):

- a. Assistant's name:
b. Telephone no.:
c. Street address, city, and zip:

- d. County of registration:
e. Registration no.:
f. Registration expires on (date):

Date:
(Fecha) 9/3/2026 11:33 AM

Clerk, by
(Secretario) /s/ Jacqueline Ramirez, Deputy
(Adjunto)

(For proof of service of this summons, use Proof of Service of Summons (form POS-010).)

(Para prueba de entrega de esta citación use el formulario Proof of Service of Summons (form POS-010).)



5. NOTICE TO THE PERSON SERVED: You are served

- a. ☒ as an individual defendant.
b. ☐ as the person sued under the fictitious name of (specify):
c. ☐ as an occupant.
d. ☐ on behalf of (specify):
under ☐ CCP 416.10 (corporation). ☐ CCP 416.60 (minor).
☐ CCP 416.20 (defunct corporation). ☐ CCP 416.70 (conservatee).
☐ CCP 416.40 (association or partnership). ☐ CCP 416.90 (authorized person).
☐ CCP 415.46 (occupant). ☐ other (specify):
e. ☐ by personal delivery on (date):



ATTORNEY OR PARTY WITHOUT ATTORNEY NAME: PHILLIP HERNANDEZ FIRM NAME: STREET ADDRESS: 2185 STEWART STREET CITY: COLTON TELEPHONE NO.: (909) 362-7012 EMAIL ADDRESS: philliphernandez1971@icloud.com ATTORNEY FOR (name): IN PRO PER	STATE BAR NUMBER: STATE: CA ZIP CODE: 92324 FAX NO.:
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN BERNARDINO STREET ADDRESS: 17780 ARROW BLVD. MAILING ADDRESS: 17780 ARROW BLVD. CITY AND ZIP CODE: FONTANA, CA 92335 BRANCH NAME: FONTANA DISTRICT	ELECTRONICALLY FILED SUPERIOR COURT OF CALIFORNIA COUNTY OF SAN BERNARDINO 9/3/2026 11:33 AM By: Jacqueline Ramirez, DEPUTY
PLAINTIFF: PHILLIP HERNANDEZ DEFENDANT: ALEXANDER MILLER ☐ DOES 1 TO	
COMPLAINT—UNLAWFUL DETAINER* ☒ COMPLAINT ☐ AMENDED COMPLAINT (Amendment Number):	CASE NUMBER: LLTVA2604011
Jurisdiction (check all that apply): ☒ ACTION IS A LIMITED CIVIL CASE (amount demanded does not exceed \$35,000) Amount demanded ☒ does not exceed \$10,000 ☐ exceeds \$10,000 ☐ ACTION IS AN UNLIMITED CIVIL CASE (amount demanded exceeds \$35,000) ☐ ACTION IS RECLASSIFIED by this amended complaint or cross-complaint (check all that apply): ☐ from unlawful detainer to general unlimited civil (possession not in issue). ☐ from limited to unlimited. ☐ from unlawful detainer to general limited civil (possession not in issue). ☐ from unlimited to limited.	
1. PLAINTIFF (name each):	

1. *PLAINTIFF* (name each):

PHILLIP HERNANDEZ

alleges causes of action against DEFENDANT (name each):

ALEXANDER MILLER

2. a. Plaintiff is (1) ☒ an individual over the age of 18 years. (4) ☐ a partnership.
(2) ☐ a public agency. (5) ☐ a corporation.
(3) ☐ other (specify):

b. ☐ Plaintiff has complied with the fictitious business name laws and is doing business under the fictitious name of (specify):

3. a. The venue is the court named above because defendant named above is in possession of the premises located at (street address, apartment number, city, zip code, and county):

3549 N. D ST., SAN BERNARDINO, CA 92405 (BACK ROOM); COUNTY OF SAN BERNARDINO

b. The premises in 3a are (check one)

(1) ☒ within the city limits of (name of city): SAN BERNARDINO

(2) within the unincorporated area of (name of county):

c. The premises in 3a were constructed in (approximate year): 1947

4. Plaintiff's interest in the premises is ☒ as owner ☐ other (specify):

5. The true names and capacities of defendants sued as Does are unknown to plaintiff.

* NOTE: Do not use this form for evictions after sale (Code Civ. Proc., § 1161a).



PLAINTIFF PHILLIP HERNANDEZ
 DEFENDANT ALEXANDER MILLER

CASE NUMBER:

6. a. On or about (date): 06/01/2026
 defendant (name each):
 ALEXANDER MILLER
- (1) agreed to rent the premises as a ☒ month-to-month tenancy ☐ other tenancy (specify):
 (2) agreed to pay rent of \$ 900 payable ☒ monthly ☐ other (specify frequency):
 (3) agreed to pay rent on the ☒ first of the month ☐ other day (specify):
- b. This ☒ written ☐ oral agreement was made with
 (1) ☒ plaintiff. (3) ☐ plaintiff's predecessor in interest.
 (2) ☐ plaintiff's agent. (4) ☐ Other (specify):
- c. ☐ The defendants not named in item 6a are
 (1) ☐ subtenants.
 (2) ☐ assignees.
 (3) ☐ Other (specify):
- d. ☐ The agreement was later changed as follows (specify):
- e. ☐ A copy of the written agreement, including any addenda or attachments that form the basis of this complaint, is attached and labeled Exhibit 1. (Required for residential property, unless item 6f is checked. See Code Civ. Proc., § 1166.)
- f. ☒ (For residential property) A copy of the written agreement is **not** attached because (specify reason):
 (1) ☐ the written agreement is not in the possession of the landlord or the landlord's employees or agents.
 (2) ☒ this action is solely for nonpayment of rent (Code Civ. Proc., § 1161(2)).
7. The tenancy described in item 6 (check 7a or 7b)
 a. ☐ is **not** subject to the Tenant Protection Act of 2019 (Civil Code, § 1946.2). The specific subpart supporting why tenancy is exempt is (specify):
 b. ☒ is subject to the Tenant Protection Act of 2019.
8. (Complete only if item 7b is checked. Check all applicable boxes.)
 a. ☒ The tenancy was terminated for at-fault just cause (Civil Code, § 1946.2(b)(1)).
 b. ☐ The tenancy was terminated for no-fault just cause (Civil Code, § 1946.2(b)(2)) and the plaintiff (check one)
 (1) ☐ waived the payment of rent for the final month of the tenancy, before the rent came due, under section 1946.2(d)(2), in the amount of \$
 (2) ☐ provided a direct payment of one month's rent under section 1946.2(d)(3), equaling \$
 to (name each defendant and amount given to each):
- c. ☐ Because defendant failed to vacate, plaintiff is seeking to recover the total amount in 8b as damages in this action.
9. a. ☒ Defendant (name each):
 ALEXANDER MILLER
- was served the following notice on the same date and in the same manner:
- (1) ☒ 3-day notice to pay rent or quit (6) ☐ 3-day notice to perform covenants or quit
 (2) ☐ 30-day notice to quit (not applicable if item 7b checked)
 (3) ☐ 60-day notice to quit (7) ☐ 3-day notice to quit under Civil Code, § 1946.2(c). Prior
 (4) ☐ 3-day notice to quit required notice to perform covenants served (date):
 (5) ☐ 30-day notice to vacate under the federal CARES Act (15 U.S.C. § 9058(c)) (8) ☐ Other (specify):



PLAINTIFF PHILLIP HERNANDEZ
 DEFENDANT ALEXANDER MILLER

CASE NUMBER

9. b. (1) On (date) 08/12/2026 the period stated in the notice checked in 9a expired at the end of the day.
 (2) Defendants failed to comply with the requirements of the notice by that date.
 c. All facts stated in the notice are true.
 d. ☒ The notice included an election of forfeiture.
 e. ☒ A copy of the notice is attached and labeled Exhibit 2. (Required for residential property. See Code Civ. Proc., § 1166. When Civil Code section 1946.2(c) applies and two notices are required, provide copies of both.)
 f. ☐ One or more defendants were served (1) with the prior required notice under Civil Code section 1946.2(c), (2) with a different notice, (3) on a different date, or (4) in a different manner, as stated in Attachment 10c. (Check item 10c and attach a statement providing the information required by items 9a–e and 10 for each defendant and notice.)
10. a. ☒ The notice in item 9a was served on the defendant named in item 9a as follows:
 (1) ☒ By personally handing a copy to defendant on (date): 08/07/2026
 (2) ☐ By leaving a copy with (name or description):
 a person of suitable age and discretion, on (date): _____ at defendant's
☐ residence ☐ business AND mailing a copy to defendant at defendant's place of residence
 on (date): _____ because defendant cannot be found at defendant's residence or usual place of business.
 (3) ☐ By posting a copy on the premises on (date):
☐ AND giving a copy to a person found residing at the premises AND mailing a copy to defendant at the premises
 on (date):
 (a) ☐ because defendant's residence and usual place of business cannot be ascertained OR
 (b) ☐ because no person of suitable age or discretion can be found there.
 (4) ☐ (Not for 3-day notice; see Civil Code section 1946 before using) By sending a copy by certified or registered mail
 addressed to defendant on (date):
 (5) ☐ (Not for residential tenancies; see Civil Code section 1953 before using) in the manner specified in a written
 commercial lease between the parties
- b. ☐ (Name):
 was served on behalf of all defendants who signed a joint written rental agreement.
- c. ☐ Information about service of notice on the defendants alleged in item 9a is stated in Attachment 10c.
- d. ☒ Proof of service of the notice in item 9a is attached and labeled Exhibit 3.
11. ☒ **Statements regarding rental assistance** (Required in all actions based on nonpayment of rent or any other financial obligation. Plaintiff must complete items 11a–d and, if later seeking a default judgment, will also need to file Verification Regarding Rental Assistance—Unlawful Detainer (form UD-120).)
 a. Plaintiff ☐ has received ☒ has not received rental assistance or other financial compensation from any other source corresponding to the amount demanded in the notice underlying the complaint.
 b. Plaintiff ☐ has received ☒ has not received rental assistance or other financial compensation from any other source for rent accruing after the date of the notice underlying the complaint.
 c. Plaintiff ☐ has ☒ does not have any pending applications for rental assistance or other financial compensation from any other source corresponding to the amount demanded in the notice underlying the complaint.
 d. Plaintiff ☐ has ☒ does not have any pending applications for rental assistance or other financial compensation from any other source for rent accruing after the date on the notice underlying the complaint.
12. ☐ Plaintiff demands possession from each defendant because of expiration of a fixed-term lease.
13. ☒ At the time the 3-day notice to pay rent or quit was served, the amount of **rent due** was \$ 900
14. ☒ The fair rental value of the premises is \$ 30 per day.
15. ☐ Defendant's continued possession is malicious, and plaintiff is entitled to statutory damages under Code of Civil Procedure section 1174(b). (State specific facts supporting a claim up to \$600 in Attachment 14.)



PLAINTIFF PHILLIP HERNANDEZ
 DEFENDANT ALEXANDER MILLER

CASE NUMBER:

16. ☒ A written agreement between the parties provides for attorney fees.
17. ☐ Defendant's tenancy is subject to the local rent control or eviction control ordinance of (city or county, title of ordinance, and date of passage).

Plaintiff has met all applicable requirements of the ordinances.

18. ☐ Other allegations are stated in Attachment 17.

19. Plaintiff accepts the jurisdictional limit, if any, of the court.

20. PLAINTIFF REQUESTS

- a. possession of the premises.
- b. costs incurred in this proceeding:
- c. ☒ past-due rent of \$ 900
- d. ☒ reasonable attorney fees.
- e. ☒ forfeiture of the agreement.
- f. ☐ damages in the amount of waived rent or relocation assistance as stated in item 8: \$
- g. ☒ damages at the rate stated in item 13 from date: 09/01/2026 for each day that defendants remain in possession through entry of judgment.
- h. ☐ statutory damages up to \$600 for the conduct alleged in item 14.
- i. ☐ other (specify):

21. ☒ Pages attached (specify number of pages): 3

UNLAWFUL DETAINER ASSISTANT (Bus. & Prof. Code, §§ 6400-6415)

22. (Complete in all cases.) An unlawful detainer assistant ☒ did not ☐ did for compensation give advice or assistance with this form. (If declarant has received any help or advice for pay from an unlawful detainer assistant, complete a-f.)

a. Assistant's name:

b. Street address, city, and zip code:

c. Telephone no.:

d. County of registration:

e. Registration no.:

f. Expires on (date):

Date: 09/02/2026

PHILLIP HERNANDEZ

(TYPE OR PRINT NAME)



(SIGNATURE OF PLAINTIFF OR ATTORNEY)

VERIFICATION

(Use a different verification form if the verification is by an attorney or for a corporation or partnership.)

I am the plaintiff in this proceeding and have read this complaint. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: 09/02/2026

PHILLIP HERNANDEZ

(TYPE OR PRINT NAME)



(SIGNATURE OF PLAINTIFF)

3-Day Notice to Pay or Quit

TO: Alexander Miller
(Name of Tenant(s))

Premises location: 3549 N. D St., San Bernardino, CA 92405 (Back Room)

Amount of total rent due and owing: \$900

<u>August 2026</u>	(month/year) \$ <u>900</u>		(month/year) \$ _____
_____	(month/year) \$ _____		(month/year) \$ _____
_____	(month/year) \$ _____		(month/year) \$ _____
_____	(month/year) \$ _____		(month/year) \$ _____

YOU ARE HEREBY REQUIRED TO PAY this amount within fifteen (3) days (excluding Saturday, Sunday, and Judicial Holidays) from the date of service to this notice on you, or to vacate and surrender possession of the premises. Your failure to do so will result in legal proceedings being initiated against you to recover possession of the premises, declare the forfeiture of the rental agreement, agreement or lease under while you occupy the premises, and recover rents, damages, and costs of suit.

RENT IS TO BE PAID TO:

☐ The undersigned (landlord) ☒ The following person: Philip H. Jorgensen

At the following address: 2185 Stewart St., Colton, CA, California, Phone: (909) 362-7012

IN THE FOLLOWING MANNER:

☒ In person. Usual days and hours for rent collection are: Monday-Sunday, 8:00 A.M. - 7:00 PM.

☒ By mail to the person and address indicated above.

☐ By deposit to account _____ at _____, a financial institution located within 5 miles of your rental, at _____, California.

☐ By electronic funds transfer previously established.

Civ. Code § 1946. If you elect to quit and to deliver up possession of the Premises instead of paying the total amount of the rent demanded in this notice, "State law permits former tenants to reclaim abandoned personal property left at the former address of the tenant, subject to certain conditions. You may or may not be able to reclaim property without incurring additional costs, depending on the cost of storing the property and the length of time before it is reclaimed. In general, these costs will be lower the sooner you contact your former landlord after being notified that property belonging to you was left behind after you moved out." If you are evicted, this same rule applies. (Civ. Code § 1946)

Date: 08.10.2026

Owner/Agent: Phillip Hernandez

PROOF (DECLARATION) OF SERVICE OF NOTICE TO TENANT

On 08/07/2026, I served the NOTICE(s) herein to the following Tenant(s):
(Insert Date of Service of Notice)

ALEXANDER MILLER
(Insert Name of Tenant)

N/A
(Insert Name of Tenant)

N/A
(Insert Name of Tenant)

N/A
(Insert Name of Tenant)

- ☒ **3 Day Notice to Pay Rent or Quit**
☐ **3 Day Notice to Perform Covenant or Quit**
☐ **30 Day Notice of Termination of Tenancy**
☐ **60 Day Notice of Termination of Tenancy**
☐ **Other:** _____

The NOTICE(s) set forth above were served by:

☒ **PERSONAL DELIVERY:**

I **HANDED** a copy of the NOTICE(s) to the following Tenant(s)

ALEXANDER MILLER
(Insert Name of Tenant)

(Insert Name of Tenant)

☐ **SUBSTITUTED SERVICE BY LEAVING NOTICE & MAILING:**

I **LEFT** copies of the NOTICE(s) with a person of suitable age and discretion at the residence or usual place of business of the Tenant(s), said Tenant(s) being absent there from. Thereafter, on the same date, I also **MAILED** copies of the NOTICE(s) to the Tenant(s) by depositing a sealed envelope with First Class postage fully prepaid, in the United States Mail, addressed to the Tenant(s) at the Premises.

(Insert Name of the Person that you left the Notice With Who Is At Least 18 years old or Give Description (Age, Sex, Height, Weight etc). if person refuses to give name)

☐ **POSTING & MAILING:**

I served the NOTICE to the Tenant(s) by **POSTING** a copy of the NOTICE(s) in a conspicuous place on the Premises, as no person of suitable age or discretion could be found at the Premises and the business cannot be ascertained. Thereafter, on the same date, I also **MAILED** copies of the NOTICE(s) to the Tenant(s) by depositing a sealed envelope with First Class postage fully prepaid, in the United States Mail, addressed to the Tenant(s) at the Premises.

I declare under penalty of perjury under the laws of the State of California that that at the time of service of the NOTICE(s) I was at least EIGHTEEN (18) years of age and that foregoing is true and correct. If called as a witness to testify thereto, I could do so competently.

Executed (Signed) on 08/07/2026, at Colton California.
(Insert City)

PHILLIP HERNANDEZ

Print Name


Signature (To Be Signed Only By the Person Actually Serving the Notice)

Form provided courtesy of David S. Schonfeld, A Professional Law Corporation. (714) 871-9004. © All Rights Reserved

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN BERNARDINO

PHILLIP HERNANDEZ

Case No.: LLTVA2604011

vs.

CERTIFICATE OF ASSIGNMENT

ALEXANDER MILLER

A civil action or proceeding presented for filing must be accompanied by this Certificate. If the ground is the residence of a party, name and residence shall be stated.

The undersigned declares that the above-entitled matter is filed for proceedings in the FONTANA District of the Superior Court under Rule 131 and General Order of this court for the checked reason:

☒ General

☐ Collection

Nature of Action

Ground

- ☐ 1. Adoption
- ☐ 2. Conservator
- ☐ 3. Contract
- ☐ 4. Equity
- ☐ 5. Eminent Domain
- ☐ 6. Family Law
- ☐ 7. Guardianship
- ☐ 8. Harassment
- ☐ 9. Mandate
- ☐ 10. Name Change
- ☐ 11. Personal Injury
- ☐ 12. Personal Property
- ☐ 13. Probate
- ☐ 14. Prohibition
- ☐ 15. Review
- ☐ 16. Title to Real Property
- ☐ 17. Transferred Action
- ☒ 18. Unlawful Detainer
- ☐ 19. Domestic Violence
- ☐ 20. Other _____
- ☐ 21. THIS FILING WOULD

- Petitioner resides within the district
- Petitioner or conservatee resides within the district.
- Performance in the district is expressly provided for.
- The cause of action arose within the district.
- The property is located within the district.
- Plaintiff, defendant, petitioner or respondent resides within the district.
- Petitioner or ward resides within the district or has property within the district.
- Plaintiff, defendant, petitioner or respondent resides within the district.
- The defendant functions wholly within the district.
- The petitioner resides within the district.
- The injury occurred within the district.
- The property is located within the district.
- Decedent resided or resides within or had property within the district.
- The defendant functions wholly within the district.
- The defendant functions wholly within the district.
- The property is located within the district.
- The lower court is located within the district.
- The property is located within the district.
- The petitioner, defendant, plaintiff or respondent resides within the district.

NORMALLY FALL WITHIN JURISDICTION OF SUPERIOR COURT

The address of the accident, performance, party, detention, place of business, or other factor which qualifies this case for filing in the above-designed district is:

3549 N. D ST. (BACK ROOM)

NAME - INDICATE TITLE OR OTHER QUALIFYING FACTOR

ADDRESS

SAN BERNARDINO

CA

92405

CITY

STATE

ZIP CODE

I declare, under penalty of perjury, that the foregoing is true and correct and that this declaration was executed on 09/02/2026 at COLTON, California.



Signature of Attorney/Party

STATE BAR NUMBER _____		FOR COURT USE ONLY	
NAME PHILLIP HERNANDEZ STREET ADDRESS 2185 STEWART STREET CITY COLTON TELEPHONE NO. (909) 362-7012 FAX NO. _____ STATE CA ZIP CODE 92324 EMAIL ADDRESS philliphernandez1971@icloud.com ATTORNEY FOR (name) IN PRO PER		ELECTRONICALLY FILED SUPERIOR COURT OF CALIFORNIA COUNTY OF SAN BERNARDINO 9/3/2026 11:33 AM By: Jacqueline Ramirez, DEPUTY	
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN BERNARDINO STREET ADDRESS 17780 ARROW BLVD. MAILING ADDRESS 17780 ARROW BLVD. CITY AND ZIP CODE FONTANA, CA 92335 BRANCH NAME FONTANA DISTRICT		CASE NUMBER: LLTVA2604011	
CASE NAME: HERNANDEZ v. MILLER		JUDGE _____ DEPT. _____	
CIVIL CASE COVER SHEET ☐ Unlimited (Amount demanded exceeds \$35,000)		☒ Limited (Amount demanded is \$35,000 or less)	
☐ Counter		☐ Joinder	
Filed with first appearance by defendant (Cal. Rules of Court, rule 3.402)		JUDGE _____ DEPT. _____	

Items 1–6 below must be completed (see instructions on page 2).

1. Check **one** box below for the case type that best describes this case:

Auto Tort

- ☐ Auto (22)
☐ Uninsured motorist (46)

Asbestos

- ☐ Asbestos (04)

Other PI/PD/WD (Personal Injury/Property Damage/Wrongful Death) Tort

- ☐ Product liability (24)
☐ Medical malpractice (45)
☐ Other PI/PD/WD (23)

Non-PI/PD/WD (Other) Tort

- ☐ Business tort/Unfair business practice (07)
☐ Civil rights (08)
☐ Defamation (13)
☐ Fraud (16)
☐ Intellectual property (19)
☐ Professional negligence (25)
☐ Other non-PI/PD/WD tort (35)

Employment

- ☐ Wrongful termination (36)
☐ Other employment (15)

Contract

- ☐ Breach of contract/warranty (06)
☐ Rule 3.740 collections (09)
☐ Other collections (09)
☐ Insurance coverage (18)
☐ Other contract (37)

Real Property

- ☐ Eminent domain/Inverse condemnation (14)
☐ Wrongful eviction (33)
☐ Other real property (26)

Unlawful Defendant

- ☐ Commercial (31)
☒ Residential (32)
☐ Drugs (33)

Judicial Review

- ☐ Asset forfeiture (05)
☐ Petition re arbitration award (11)
☐ Writ of mandate (02)
☐ Other judicial review (39)

Employment Development Department (EDD)

- ☐ EDD decision review (48)

**Provisionally Complex Civil Litigation
(Cal. Rules of Court, rules 3.400–3.404)**

- ☐ Antitrust/Trade regulation (03)
☐ Construction defect (10)
☐ Mass tort (40)
☐ Securities litigation (28)
☐ Environmental/Toxic tort (30)
☐ Comprehensive groundwater adjudication (47)
☐ Insurance coverage claims arising from the above listed provisionally complex case types (41)

Enforcement of Judgment

- ☐ Enforcement of judgment (20)

Miscellaneous Civil Complaint

- ☐ RICO (27)
☐ Other complaint (not specified above) (42)

Miscellaneous Civil Petition

- ☐ Partnership and corporate governance (21)
☐ Other petition (not specified above) (43)



Is this case complex under rule 3.400 of the California Rules of Court? ☐ Yes ☒ No

If the case is complex, mark the factors requiring exceptional judicial management:

- a. ☐ Large number of separately represented parties
- b. ☐ Extensive motion practice raising difficult or novel issues that will be time-consuming to resolve
- c. ☐ Substantial amount of documentary evidence
- d. ☐ Large number of witnesses
- e. ☐ Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court
- f. ☐ Substantial postjudgment judicial supervision

3. Remedies sought (check all that apply):

- a. ☒ monetary
- b. ☒ nonmonetary; declaratory or injunctive relief
- c. ☐ punitive

4. Number of causes of action (specify): 1

5. Is this case a class action suit? ☐ Yes ☒ No

6. If there are any known related cases, file and serve a notice of related case. (You may use form CM-015.)

Date: 09/02/2026

PHILLIP HERNANDEZ

(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY FOR PARTY)

NOTICE

- Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (except small claims cases or cases filed under the Probate Code, Family Code, or Welfare and Institutions Code). (Cal. Rules of Court, rule 3.220.) Failure to file may result in sanctions.
- File this cover sheet in addition to any cover sheet required by local court rule.
- If this case is complex under rule 3.400 et seq. of the California Rules of Court, you must serve a copy of this cover sheet on all other parties to the action or proceeding.
- Unless this is a collections case under rule 3.740 of the California Rules of Court or a complex case, this cover sheet will be used for statistical purposes only.

INSTRUCTIONS ON HOW TO COMPLETE THE COVER SHEET

To Plaintiffs and Others Filing First Papers. If you are filing a first paper (for example, a complaint) in a civil case, you **must** complete and file, along with your first paper, the Civil Case Cover Sheet contained on pages 1 and 2. This information will be used to compile statistics about the types and numbers of cases filed. You must complete items 1 through 6 on the sheet. In item 1, you must check **one** box for the case type that best describes the case. If the case fits both a general and a more specific type of case listed in item 1, check the more specific one. If the case has multiple causes of action, check the box that best indicates the **primary** cause of action. To assist you in completing the sheet, examples of the cases that belong under each case type in item 1 are provided below. A cover sheet must be filed only with your initial paper. Failure to file a cover sheet with the first paper filed in a civil case may subject a party, its counsel, or both to sanctions under rules 2.30 and 3.220 of the California Rules of Court.

To Parties in Rule 3.740 Collections Cases. A "collections case" under rule 3.740 of the California Rules of Court is defined as an action for recovery of money owed in a sum stated to be certain that is not more than \$35,000, exclusive of interest and attorney's fees, arising from a transaction in which property, services, or money was acquired on credit. A collections case does not include an action seeking the following: (1) tort damages, (2) punitive damages, (3) recovery of real property, (4) recovery of personal property, or (5) a prejudgment writ of attachment. The identification of a case as a rule 3.740 collections case on this form means that it will be exempt from the general time-for-service requirements and case management rules, unless a defendant files a responsive pleading. A rule 3.740 collections case will be subject to the requirements for service and obtaining a judgment in rule 3.740.

To Parties in Complex Cases. In complex cases only, parties must also use the Civil Case Cover Sheet to designate whether the case is complex. If a plaintiff believes the case is complex under rule 3.400 of the California Rules of Court, this must be indicated by completing the appropriate boxes in items 1 and 2. If a plaintiff designates a case as complex, the cover sheet must be served with the complaint on all parties to the action. A defendant may file and serve no later than the time of its first appearance a joinder in the plaintiff's designation, a counter-designation that the case is not complex, or, if the plaintiff has made no designation, a designation that the case is complex.

SEE PAGE 3 FOR INFORMATION PURPOSES ONLY.



CASE TYPES AND EXAMPLES

Contract

- Breach of Contract/Warranty (06)
 - Breach of Rental/Lease Contract (*not unlawful detainer or wrongful eviction*)
- Contract/Warranty Breach–Seller Plaintiff (*not fraud or negligence*)
- Negligent Breach of Contract/Warranty
- Other Breach of Contract/Warranty
- Collections (e.g., money owed, open book accounts) (09)
 - Collections Case–Seller Plaintiff
- Other Promissory Note/Collections Case
- Insurance Coverage (*not provisionally complex*) (18)
 - Auto Subrogation
 - Other Coverage
- Other Contract (37)
 - Contractual Fraud
 - Other Contract Dispute

Real Property

- Eminent Domain/Inverse Condemnation (14)
- Wrongful Eviction (33)
- Other Real Property (e.g., quiet title) (26)
 - Writ of Possession of Real Property
 - Mortgage Foreclosure
 - Quiet Title
 - Other Real Property (*not eminent domain, landlord-tenant, or foreclosure*)

Unlawful Detainer

- Commercial (31)
- Residential (32)
- Drugs (38) (*if the case involves illegal drugs, check this item; otherwise, report as Commercial or Residential*)

Judicial Review

- Asset Forfeiture (05)
- Petition re Arbitration Award (11)
- Writ of Mandate (02)
 - Writ–Administrative Mandamus
 - Writ–Mandamus on Limited Court Case Matter
 - Writ–Other Limited Court Case Review
- Other Judicial Review (09)
 - Review of Health Officer Order
 - Notice of Appeal–Labor Commissioner Appeals

Employment Development Department (EDD)

- EDD Decision Review (48) (*if the case involves an Employment Development Department decision, check this item instead of Wrongful Termination or Other Employment*)

Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 3.400–3.403)

- Antitrust/Trade Regulation (03)
- Construction Defect (10)
- Claims Involving Mass Tort (40)
- Securities Litigation (28)
- Environmental/Toxic Tort (30)
- Comprehensive Groundwater Adjudication (47)
- Insurance Coverage Claims (*arising from provisionally complex case type listed above*) (41)

Enforcement of Judgment

- Enforcement of Judgment (20)
 - Abstract of Judgment (Out of County)
 - Confession of Judgment (*non-domestic relations*)
 - Sister-State Judgment
 - Administrative Agency Award (*not unpaid taxes*)
 - Petition/Certification of Entry of Judgment on Unpaid Taxes
 - Other Enforcement of Judgment Case

Miscellaneous Civil Complaint

- RICO (27)
- Other Complaint (*not specified above*) (42)
 - Declaratory Relief Only Injunctive Relief Only (*non-harassment*)
 - Mechanic's Lien
 - Other Commercial Complaint Case (*non-tort/non-complex*)
 - Other Civil Complaint (*non-tort/non-complex*)

Miscellaneous Civil Petition

- Partnership and Corporate Governance (21)
- Other Petition (*not specified above*) (43)
 - Civil Harassment
 - Workplace Violence
 - Elder/Dependent Adult Abuse
 - Election Contest
 - Petition for Name Change
 - Petition for Relief From Late Claim
 - Other Civil Petition

- Auto Tort*
Auto Tort–Personal Injury/Property Damage/ Wrongful Death
 Uninsured Motorist (46) (*if the case involves an uninsured motorist claim subject to arbitration, check this item instead of Auto*)
- Asbestos
 Asbestos (04)
 - Asbestos Property Damage
 - Asbestos Personal Injury/Wrongful Death
- Other PI/PD/WD (Personal Injury/Property Damage/Wrongful Death) Tort
- Product Liability (*not asbestos or toxic/environmental*) (24)
- Medical Malpractice (45)
 - Medical Malpractice–Physicians & Surgeons
 - Other Professional Health Care Malpractice
- Other PI/PD/WD (23)
 - Premises Liability (e.g., slip and fall)
 - Intentional Bodily Injury/PD/WD (e.g., assault, vandalism)
 - Intentional Infliction of Emotional Distress
 - Negligent Infliction of Emotional Distress
 - Other PI/PD/WD
- Non-PI/PD/WD (Other) Tort
- Business Tort/Unfair Business Practice (07)
- Civil Rights (e.g., discrimination, false arrest) (*not civil harassment*) (08)
- Defamation (e.g., slander, libel) (13)
- Fraud (16)
- Intellectual Property (19)
- Professional Negligence (25)
 - Legal Malpractice
 - Other Professional Malpractice (*not medical or legal*)
- Other Non-PI/PD/WD Tort (35)
- Employment
- Wrongful Termination (36)
- Other Employment (15)

ATTORNEY WITHOUT ATTORNEY (Name, State Bar number, and address) PHILLIP HERNANDEZ 17780 ARROW STREET FONTANA, CA 92324 TELEPHONE NO. (909) 362-7012 FAX NO. (Optional) E-MAIL ADDRESS (Optional) philiphernandez1971@icloud.com ATTORNEY FOR (Name) IN PRO PER		FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN BERNARDINO STREET ADDRESS 17780 ARROW BLVD. MAILING ADDRESS 17780 ARROW BLVD. CITY AND ZIP CODE FONTANA, CA 92335 BRANCH NAME FONTANA DISTRICT		
PLAINTIFF/PETITIONER: PHILLIP HERNANDEZ DEFENDANT/RESPONDENT: ALEXANDER MILLER		CASE NUMBER: LLTVA2604011
PROOF OF SERVICE OF SUMMONS		Ref. No. or File No.:

(Separate proof of service is required for each party served.)

1. At the time of service I was at least 18 years of age and not a party to this action.
2. I served copies of:
 - a. ☒ summons
 - b. ☒ complaint
 - c. ☐ Alternative Dispute Resolution (ADR) package
 - d. ☒ Civil Case Cover Sheet (served in complex cases only)
 - e. ☐ cross-complaint
 - f. ☒ other (specify documents): CERTIFICATE OF ASSIGNMENT (FORM # 13-16503-360)
3. a. Party served (specify name of party as shown on documents served):
ALEXANDER MILLER
- b. ☐ Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b on whom substituted service was made) (specify name and relationship to the party named in item 3a):
4. Address where the party was served:
3549 N. D ST., SAN BERNARDINO, CA 92405 (BACK ROOM); COUNTY OF SAN BERNARDINO
5. I served the party (check proper box)
 - a. ☐ **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): (2) at (time):
 - b. ☐ **by substituted service.** on (date): at (time): I left the documents listed in item 2 with or in the presence of (name and title or relationship to person indicated in item 3):
 - (1) ☐ **(business)** a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served. I informed him or her of the general nature of the papers.
 - (2) ☐ **(home)** a competent member of the household (at least 18 years of age) at the dwelling house or usual place of abode of the party. I informed him or her of the general nature of the papers.
 - (3) ☐ **(physical address unknown)** a person at least 18 years of age apparently in charge at the usual mailing address of the person to be served, other than a United States Postal Service post office box. I informed him or her of the general nature of the papers.
 - (4) ☐ I thereafter mailed (by first-class, postage prepaid) copies of the documents to the person to be served at the place where the copies were left (Code Civ. Proc., § 415.20). I mailed the documents on (date): from (city): or ☐ a declaration of mailing is attached.
 - (5) ☐ I attach a **declaration of diligence** stating actions taken first to attempt personal service.

by mail and acknowledgment of receipt of service. I mailed the documents listed in item 2 to the party, to the address shown in item 4, by first-class mail, postage prepaid,

(1) on (date):

(2) from (city):

(3) ☐ with two copies of the Notice and Acknowledgment of Receipt and a postage-paid return envelope addressed to me. (Attach completed Notice and Acknowledgement of Receipt.) (Code Civ. Proc., § 415.30.)

(4) ☐ to an address outside California with return receipt requested. (Code Civ. Proc., § 415.40.)

d. ☐ by other means (specify means of service and authorizing code section):

☐ Additional page describing service is attached.

6. The "Notice to the Person Served" (on the summons) was completed as follows:

a. ☒ as an individual defendant.

b. ☐ as the person sued under the fictitious name of (specify):

c. ☐ as occupant.

d. ☐ On behalf of (specify):

under the following Code of Civil Procedure section:

☐ 416.10 (corporation)

☐ 416.20 (defunct corporation)

☐ 416.30 (joint stock company/association)

☐ 416.40 (association or partnership)

☐ 416.50 (public entity)

☐ 415.95 (business organization, form unknown)

☐ 416.60 (minor)

☐ 416.70 (ward or conservatee)

☐ 416.90 (authorized person)

☐ 415.46 (occupant)

☐ other:

7. Person who served papers

a. Name:

b. Address:

c. Telephone number:

d. The fee for service was: \$

e. I am:

(1) ☐ not a registered California process server.

(2) ☐ exempt from registration under Business and Professions Code section 22350(b).

(3) ☐ a registered California process server:

☐ owner ☐ employee ☐ independent contractor.

(ii) Registration No.:

(iii) County:

8. ☐ I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

or

9. ☐ I am a California sheriff or marshal and I certify that the foregoing is true and correct.

Date:

(NAME OF PERSON WHO SERVED PAPERS/SHERIFF OR MARSHAL)

(SIGNATURE)